CAUSE NO. D-1-GN-26-000000

REDWATER LOGISTICS, INC.	§	**IN THE DISTRICT COURT OF**
Plaintiff/Counter-Defendant,	§	
	§	
v.	§	**000TH JUDICIAL DISTRICT**
	§	
CEDAR MILL HOLDINGS, LLC	§	
Defendant/Counter-Plaintiff.	§	**TRAVIS COUNTY, TEXAS**

DEFENDANT'S SPECIAL EXCEPTIONS, VERIFIED DENIALS, ORIGINAL ANSWER, AND COUNTERCLAIM

TO THE HONORABLE JUDGE OF SAID COURT:

Defendant Cedar Mill Holdings, LLC files this answer to Plaintiff's Original Petition and shows the Court as follows.

I.
SPECIAL EXCEPTIONS

1. Defendant specially excepts to the paragraph of Plaintiff's Original Petition that pleads damages, because it does not state the maximum amount claimed, as Texas Rule of Civil Procedure 47 requires. Defendant asks the Court to order Plaintiff to replead within a time the Court sets, and to strike the paragraph if Plaintiff does not.

II.
GENERAL DENIAL

2. Under Texas Rule of Civil Procedure 92, Defendant generally denies each allegation of Plaintiff's Original Petition and asks that Plaintiff be required to prove its allegations by a preponderance of the evidence.

III.
VERIFIED DENIALS

3. Defendant denies that it is liable in the capacity in which Plaintiff has sued it. The Plaintiff sued Defendant as the owner of the warehouse, but Defendant is its tenant. This denial is verified below under Texas Rule of Civil Procedure 93(2).

IV.
AFFIRMATIVE DEFENSES

4. Pleading further, and in the alternative, Defendant asserts the following affirmative defenses under Texas Rule of Civil Procedure 94:

- limitations;
- waiver; and
- failure of consideration.

V.
COUNTERCLAIM

5. Defendant brings this counterclaim under Texas Rule of Civil Procedure 97 against Plaintiff.

A. Rule 47 statements

6. Defendant's damages are within the jurisdictional limits of the Court. Defendant seeks only monetary relief of $325,000 or less, excluding interest, statutory or punitive damages and penalties, and attorney's fees and costs.

B. Claim for breach of contract

7. Plaintiff agreed to pay Defendant for storage space, and Plaintiff has not paid. Defendant has performed its obligations.

VI.
JURY DEMAND

8. Defendant demands a trial by jury and will pay the jury fee.

VII.
PRAYER

For these reasons, Defendant asks that Plaintiff take nothing, that Defendant recover on its counterclaim, and that the Court award Defendant all other relief to which it is entitled.

Dated: January 1, 2027

Respectfully submitted,

EXAMPLE & EXAMPLE, PLLC

By: /s/ Alex Example
ALEX EXAMPLE
State Bar of Texas No. 00000000
100 Example Street, Suite 100
Austin, Texas 78701
Telephone: (512) 555-0100
Email: alex@example.test

ATTORNEY IN CHARGE FOR DEFENDANT/COUNTER-PLAINTIFF

CERTIFICATE OF SERVICE

I certify that on January 1, 2027, a true and correct copy of the foregoing document was served in accordance with Texas Rule of Civil Procedure 21a, by electronic service through the electronic filing manager, on the following counsel of record or parties:

Pat Placeholder
Placeholder Law, P.C.
200 Sample Avenue, Austin, Texas 78702
pat@placeholder.test
Counsel for Plaintiff

/s/ Alex Example
Alex Example

VERIFICATION

I am the managing member of Defendant Cedar Mill Holdings, LLC, and I am authorized to make this verification for it. I have read the verified denial in this pleading. The facts stated in it are within my personal knowledge and are true and correct.

My name is Jordan Declarant, my date of birth is January 1, 1970, and my address is 100 Sample Road, Austin, Texas 78701, United States of America. I declare under penalty of perjury that the foregoing is true and correct.

Executed in Travis County, State of Texas, on the 1st day of January, 2027.

_____

Jordan Declarant
Declarant